



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Lieutenant Javier Rodriguez : ORDER
Tax Registry No. 939338 : OF
Criminal Enterprise Investigation Section : DISMISSAL
-----X

Lieutenant Javier Rodriguez, Tax Registry No. 939338, having been served with written notice, has been tried on written Charges and Specifications numbered C-035734, as set forth on form P.D. 468-121, dated October 22, 2025, and after a review of the entire record, Respondent is found Guilty of the charged misconduct.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Lieutenant Javier Rodriguez from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE: 10/31/25
POLICE DEPARTMENT



POLICE DEPARTMENT

October 29, 2025

-----X
In the Matter of the Charges and Specifications :

Case No.

- against - :

C-035734

Lieutenant Javier Rodriguez :

Tax Registry No. 939338 :

Criminal Enterprise Investigation Section :

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Daniel Maurer, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Tried *in absentia*

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Lieutenant Javier Rodriguez, while assigned to the Criminal Enterprise Investigation Section, on or about October 22, 2025, during an official Department interview conducted by Inspector Dawit Fikru, did fail to answer questions directed to him related to an incident that occurred at his residence in Nassau County.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

A.G. 318-11

INTERROGATION OF
MEMBERS OF SERVICE

2. Lieutenant Javier Rodriguez, while assigned to the Criminal Enterprise Investigation Section, on or about October 22, 2025, during an official Department interview conducted by Inspector Dawit Fikru, did fail to comply with a lawful order issued by Inspector Fikru to answer questions directed to him.

A.G. 304-03, Page 1, Paragraph 2

COMPLIANCE WITH
ORDERS

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-referenced matter was set down for trial on October 27, 2025. Respondent did not appear for the trial, nor did an attorney appear on his behalf, and an inquest hearing was held in Respondent's absence. The Department called Inspector Dawit Fikru of IAB as a witness. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of the charges and recommend a penalty of Termination.

ANALYSIS

Respondent faces charges stemming from his refusal to answer questions, and his failure to comply with an order to do so, at his official Department interview on October 22, 2025.

Procedural History

On October 24, 2025, this matter was conferenced before the court for the purpose of scheduling a trial. Respondent did not appear, but defense counsel James Moschella appeared on his behalf for purposes of the conference only. He confirmed with the Court that Respondent had received a copy of the Charges and Specifications, as well as notice of the conference. According to Mr. Moschella, Respondent, who has more than 20 years of service with the Department, had informed him that he would not be attending the conference. He also stated that he would not be appearing on any date set for trial and did not expect counsel to appear on his behalf.

Based on that record, the conference proceeded as scheduled. The Department Advocate requested an expedited trial, stating that there was an urgency to commence the proceedings as soon as possible since Respondent had submitted his retirement papers. The Court granted the request, noting that if Respondent chose not to appear the trial would proceed in his absence, and the matter was adjourned to October 27, 2025, at 1000 hours for trial.

On October 27, 2025, the date set for trial, Respondent did not appear, nor did defense counsel. The Department Advocate advised the court that notice of the trial date had been left at Respondent's address in East Meadow, which remains his address on file with the Department.¹ However, since there had been a fire at that location on September 19, notice also was left at Respondent's last known address prior to moving to East Meadow, as well as at the 105 Precinct where Respondent was required to report while on suspension. Additionally, notice of the trial date was mailed to Respondent, and a message was left with him at the phone number on file with the Department. (Tr. 3) In light of these representations, as well as Respondent's statement

¹ Pursuant to Administrative Guide Section 304-16, all MOS have a duty to file with the Department any change in address.

to defense counsel that he would not be appearing at trial, the matter proceeded to an inquest hearing in his absence.

Evidence and Charges

On the evening of September 19, 2025, a fire occurred at the East Meadow home where Respondent resided with his wife, who also is a police officer with the NYPD. Inspector Dawit Fikru of IAB testified that he investigated the matter, which came to IAB's attention when Respondent was reported missing by his wife in the immediate aftermath of the fire. Respondent was quickly located on an Amtrak train in Baltimore, Maryland, and was driven back to New York by members of his unit. According to Inspector Fikru, Nassau County authorities initially thought it might be an electrical fire, and their investigation into the source of the fire was limited. However, when it was subsequently learned that Respondent and his wife may have had a verbal dispute prior to the fire, IAB conducted further investigation, including interviews with multiple individuals, in an effort to figure out what had transpired. As part of that investigation, IAB scheduled an official interview with Respondent for October 22, 2025. (Tr. 13-15)

On that date, Respondent appeared for the interview along with defense counsel. A recording of that interview, which consisted of three parts, along with the accompanying transcript, was introduced into evidence. (Dept. Exs. 1 & 1A) According to Inspector Fikru, Respondent was warned at the outset that a failure to answer the questions would subject him to disciplinary charges and could result in his dismissal from the Department. Other than confirming his current command, Respondent refused to answer the questions posed to him regarding the events of September 19, 2025. Even after Inspector Fikru ordered him to answer questions, Respondent "respectfully refuse[d]" to do so. Respondent was again warned of the

implications of failing to respond, and when he continued to refuse to answer questions, he was informed that he was suspended. (Tr. 16-18)

The recording and transcript in evidence are consistent with Inspector Fikru's testimony. Respondent was informed at the outset that he was being questioned as a subject in connection with an allegation of arson that occurred at his home on September 19, 2025. Before the questioning commenced, Respondent was reminded of the provisions of Section 318-11 of the Administrative Guide, including that he was required to answer questions directed toward him by the investigators, and that his refusal to do so would subject him to departmental charges which could result in his dismissal from the Department. Respondent confirmed that he understood the warnings. (Dept. Ex. 1A at 3)

In response to a preliminary question regarding how long he had been at his current assignment, Respondent stated that he respectfully declined to answer further questions. He confirmed that he understood the warnings that had just been read to him, and reiterated that he would not answer questions. Inspector Fikru ordered him to answer the questions regarding his possible misconduct, and asked whether Respondent was going to follow his lawful order. Respondent answered that he understood what the Inspector was saying, and that he declined to answer any further questions. (Dept. Ex. 1A at 6)

At this point during the IAB interview, they took a seven-minute break. When they returned, the Administrative Guide warnings were again read to Respondent. Inspector Fikru asked whether he was at his residence on September 19, 2025, and Respondent replied that he declined to answer any further questions. The Inspector ordered him to answer, and Respondent replied that he understood, and was declining to answer. Inspector Fikru asked whether this

refusal to answer questions was his own choice, and Respondent stated that it was. At this point, there was another break in the interview. (Dept. Ex. 1A at 7-8)

When the interview resumed 12 minutes later, Inspector Fikru asked Respondent whether it was still his intention not to answer questions regarding what occurred on September 19, 2025, at his residence. Respondent answered yes, at which point the Inspector informed Respondent that he was being suspended from duty. (Dept. Ex. 1A at 8-9)

Specification 1 charges Respondent with refusing to answer questions posed to him during his official Department interview on October 22, 2025, while Specification 2 charges Respondent with his failure to follow the Inspector's lawful order to answer the questions. Section 318-11 of the Administrative Guide requires a member of the service to answer such questions, while Section 304-03 requires an MOS to obey lawful orders and instructions from a supervising officer.

Here, the credible evidence has established that Respondent repeatedly refused to answer questions during his official Department interview. In doing so, he disobeyed a lawful order from an Inspector directing him to answer the questions. Inspector Fikru, who was present at the interview, credibly testified regarding what transpired, and his testimony was consistent with the recording of the interview in evidence. Specifically, Respondent twice was read the appropriate warnings as to the implications of his failure to answer questions, and he confirmed he understood. Nevertheless, Respondent refused to answer questions about the fire that occurred at his home on September 19, 2025. Even after being ordered by the Inspector to answer, Respondent, with his counsel present, persisted in his refusal. Accordingly, I find Respondent Guilty of Specifications 1 and 2.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum. Respondent has no formal disciplinary record.

Respondent, who was appointed to the Department on July 11, 2005, has been found guilty of refusing to answer questions at his official Department interview, and failing to comply with a lawful order from an Inspector to do so. The Department was investigating serious allegations surrounding a fire that occurred at the home of Respondent and his wife under suspicious circumstances. Based on Respondent's actions at the interview, the Department Advocate is seeking a penalty of Termination.

The goal of any internal investigation is to get to the truth. By refusing to answer questions, Respondent undermined the Department's efforts to learn the relevant facts surrounding the fire. Under these circumstances, Respondent's egregious misconduct constituted conduct prejudicial to the good order and efficiency of the Department, warranting the aggravated penalty of Termination. Moreover, this tribunal has consistently held that failure to comply with an order to answer questions at an official Department interview is grounds for termination. *See Disciplinary Case No. C-035504* (October 17, 2025); *Disciplinary Case No. 2020-21869* (March 24, 2020).

Taking into account the totality of the facts and issues in this matter, I recommend a penalty of Termination from the Department.

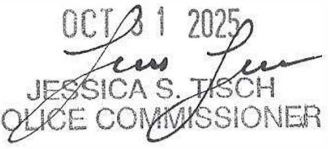
Respectfully submitted,

A handwritten signature in blue ink, appearing to read "Jeff S. Adler".

Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

OCT 31 2025

A handwritten signature in blue ink, appearing to read "Jessica S. Tisch".

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: SUMMARY OF EMPLOYMENT RECORD
LIEUTENANT JAVIER RODRIGUEZ
TAX REGISTRY NO. 939338
DISCIPLINARY CASE NO. C-035734

Respondent was appointed to the Department on July 11, 2005. On his three most recent annual performance evaluations, he received 5.0 ratings of “Extremely Competent” for 2019, 2020, and 2023. He has been awarded one Medal for Valor, one Commendation, one Honorable Mention, 27 medals for Meritorious Police Duty, and 12 medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

In connection with the instant matter, he was suspended without pay on October 22, 2025. Respondent remains suspended to date.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials